

Informal hearing of Professor Pasquale Stanzione,  
President of the Authority for the Protection of Personal Data,  
in the context of the examination of the bill C. 1074 Bagnai, titled "Amendments to Article 132 of the  
Code regarding the protection of personal data, as per Legislative Decree No. 196 of June 30, 2003,  
concerning the acquisition of data related to telephone and telematic traffic for the purposes of  
protecting the life and physical safety of the interested party."

Chamber of Deputies - II Commission, Justice

(July 18, 2024)

- THE VIDEO OF THE HEARING

I thank the Commission for this opportunity to discuss a matter of particularly significant interest,  
primarily for the Authority.

This bill addresses, indeed, from a peculiar perspective, a topic—namely, the acquisition of call  
records—around which a jurisprudence, particularly European, has developed that is notably  
protective regarding the relationship between privacy, security, and justice. In light of a regulation  
aimed at legitimizing, albeit within certain limits, the retention and subsequent acquisition of telephone  
records for the purposes of combating crime, the Court of Justice of the EU has progressively  
introduced significant guarantees that have, in a certain sense, altered its nature. Starting from the  
awareness of the ability of traffic data, both telephone and telematic, to reveal significant aspects of  
individuals' private lives, the Court has indeed progressively restricted the possibilities of collecting this  
data for justice purposes, even declaring the illegitimacy of Directive 2006/24/EC for violating the  
principle of proportionality in balancing data protection and public safety needs (judgment in Digital  
Rights of April 8, 2014 (joined cases C-293/12 and C-594/12). In subsequent rulings, the Court, in  
addition to subordinating the acquisition of call records, in judicial proceedings, to the scrutiny of a third  
authority (judge or independent authority), has asserted the need to make the retention of call records  
selective and targeted, limiting it based on the type of data, the means of communication considered,  
the duration of retention, the individuals involved (who must have at least an indirect connection to the  
commission of serious crimes), and even geographic criteria that limit retention to areas characterized  
by specific risks (see, in particular, judgments of December 21, 2016, *Tele2 Sverige* (joined cases C  
203/15 and C 698/15), October 6, 2020, *La Quadrature du Net* (C 511/18 et al.), March 2, 2021, *H.K.  
v. Prokuratuur* (C 746-18); September 20, 2022, *SpaceNet and Telekom Deutschland*, C-793/19 and  
C-794/19, EU:C:2022.).

The Court has, therefore, introduced criteria that make a measure such as data retention structurally  
massive and preventive (as it is a precursor to an acquisition that is only eventual and, in any case,  
future), increasingly selective and functional. This path has been outlined with reference to criminal  
proceedings and, in particular, to the needs of combating crimes, expressly contemplated by Directive  
2002/58/EC among the exceptions to the otherwise stringent confidentiality guarantees established by  
the directive itself (and among the exclusion criteria from the scope of application of the draft e-privacy  
regulation).

The bill, however, intervenes on a completely different matter, namely the acquisition of call  
records—retained, indeed, for justice purposes—in cases where they are necessary for the  
safeguarding of individual safety, outside of a criminal proceeding, as can be inferred from the  
exclusion clause that opens paragraph 3-bis.1 of Article 132 of Legislative Decree No. 196 of 2003.  
Such a necessity occurred, for example, in a case dating back to February 2023, following the  
disappearance of an adult individual suffering from epileptic seizures, for whose location it was  
necessary to acquire the most recent call records, so as to be able to "triangulate" the cells connected  
to the phone and thus identify, with greater precision, the location in order to provide assistance. The  
Court, however, rejected the request for the acquisition of call records presented by the family, as no  
criminal proceedings had been opened for hypothetically conceivable offenses in such cases (e.g.,  
kidnappings for extortion purposes). The family thus appealed to the President of the Republic to raise  
awareness among lawmakers on the matter, hoping for a legislative amendment.

The bill should, therefore, be framed in this perspective and referred to this purpose: legitimate and, it  
is believed, not precluded by the currently applicable Directive 2002/58/EC, which indeed concerns,

particularly in Article 15, the harmonization of national rules on the maximum retention of call records imposed by Member States for reasons of justice.

The solution suggested by the bill, on the merits, does not appear unreasonable. The prerequisites for the acquisition of call records are identified in the (considered) necessity of acquiring telephone and telematic traffic data—in the categories described by paragraphs 1 and 1-bis of Article 132 of Legislative Decree No. 196 of 2003—concerning the needs for the protection of the life and physical integrity of the interested party. This last reference (which recalls the notion in Article 4, paragraph 1, letter a) of EU Regulation 2016/679) leads to the conclusion that the call records susceptible to acquisition are only those relating to the individual to be protected.

#### **\*\*The Criterion of the Necessity of Acquiring Call Records\*\***

The criterion of the necessary acquisition of call records, in relation to the needs for the protection of individual safety, helps to delineate the scope of data that can be collected, limiting it to those that are evidently closer to the harmful event concerning the individual. The temporal limitation of the range of call records that can be acquired, along with the needs for the protection of life and physical integrity of the individual—which legitimizes acquisition not certainly for every missing person or one who has voluntarily distanced themselves—contributes to the observance of that general criterion of proportionality in the limitations of fundamental rights (such as, indeed, the right to data protection) imposed by Article 52, paragraph 1, of the Charter of Fundamental Rights of the European Union (CDFUE).

The parameter of necessity should also serve as a general criterion of subsidiarity, legitimizing the acquisition of call records only where the data on location alone—acquirable pursuant to Articles 126 and 127, paragraph 4, of Legislative Decree No. 196 of 2003—are insufficient for the protection needs identified by the regulation.

If it were deemed appropriate to introduce an even more restrictive hermeneutic criterion, it could, however, be qualified as “indispensable” – rather than “only” necessary – the call records that are deemed necessary to acquire. It must be considered, however, that the requirement of necessity, correctly interpreted in light of the jurisprudence of the Court of Justice of the European Union (CJEU) and the principles established by the regulations on data protection (EU Regulation 2016/679, Legislative Decree Nos. 51 of 2018, 196 of 2003, and subsequent amendments), has a selective value adequate to guarantee that principle of proportionality emphasized by the Court, also in terms of Article 52, paragraph 1, CDFUE. Naturally, the legitimate reasons for acquisition must be fully articulated in the request from the public security authority and, above all, in the subsequent decree (specifically motivated) of the public prosecutor, correctly identified as the competent authority for the authorization review of police activity.

In this case, the public prosecutor is not, in fact, subject to the exceptions of lack of third-party status raised by the CJEU in the judgment of March 2, 2021, regarding the acquisition for evidentiary purposes of call records, as the public prosecutor, in the case at hand, is not a party, albeit public, to the process.

The draft law also includes the provisions introduced among those whose violation results in the inadmissibility of the acquired data. This provision seems correct, as it expresses a more general principle of inadmissibility in a “sanctioning” function of data acquired in violation of the relevant regulations (Article 2-decies of Legislative Decree No. 196 of 2003), although naturally in this case it will not concern procedural inadmissibility but merely procedural inadmissibility.

Therefore, there are, in the opinion of the Guarantor, no further aspects deserving of modification in a legislative proposal, such as the one under examination, which seems functional to shared protection needs, according to methods that can be considered compliant with the general principle of proportionality between privacy and public needs established by the CJEU and by Article 52, paragraph 1, CDFUE. Thank you.